

## SOLVED PRACTICE WORKBOOK

# Individual and State - Solved Practice Workbook

UPSC Philosophy Optional | Paper II, Section A | 32 diagnostics, 9 solved PYQs and 6 original Mains models

### LEARNING PATH



*Deterministic fallback visual: move from precise concepts through argument and critique to exam application.*

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Source order: repository knowledge -> official current linkage -> clearly marked analysis. No fabricated PYQs or statistics.

# CONTENTS / WORKBOOK INDEX

Major learning parts and meaningful subtopics are listed in document order. Page numbers are generated from the final PDF layout; PDF bookmarks mirror the same hierarchy.

|                                                                                    |           |
|------------------------------------------------------------------------------------|-----------|
| <b>Individual and State - Solved Practice Workbook</b>                             | <b>3</b>  |
| <b>What this workbook contains</b>                                                 | <b>3</b>  |
| How to use it                                                                      | 4         |
| <b>BASIC MCQS / REMEDIATION</b>                                                    | <b>4</b>  |
| 32 original MCQs - 24 core diagnostics and 8 remedial error-targeting drills       | 4         |
| <b>PYQS AND ANSWER PRACTICE</b>                                                    | <b>21</b> |
| Practice status and source discipline - read once, applies to every solution below | 21        |
| ORIGINAL MAINS PRACTICE WITH MODEL SOLUTIONS                                       | 31        |

# Individual and State - Solved Practice Workbook

**Standalone workbook.** It reproduces the complete practice apparatus of the Individual and State learning package and can be worked without the teaching sessions. Syllabus, verbatim: *Individual and State : Rights; Duties and Accountability.* - UPSC Philosophy Paper II, Section A, item 3. □ Three terms are printed and only three; Locke, Bentham, Hohfeld, Gandhi, Hobbes, Rousseau, Plato, Aristotle, Hegel, Green, Dworkin, Raz and Simmons appear because owned previous-year parts require them, while Austin's command theory and legal finality, anarchism and Marxism as full ideologies, monarchy, theocracy and democracy as forms, the equality-justice-liberty triad, recognition and group rights, gendered private power and the theories of punishment belong to later owners and are routed rather than developed. **Evidence discipline:** FACT: doctrine on which the standard sources converge · ANALYSIS: analytical reconstruction for exam use · CAUTION: a live scholarly dispute. Model answers are independent learner practice and are never official UPSC keys; UPSC publishes no descriptive model answer for Philosophy Paper II. **Terminology and citation rule:** the English concept leads and the technical term follows immediately in parentheses - *a justified claim, liberty, power or immunity (a right), a claim that others owe conduct (claim-right), a freedom to act imposing no positive duty (liberty or privilege), an ability to alter legal relations (power), a protection against alteration (immunity), the pairing of a right with the duty it entails (correlativity), rights prior to the state (natural rights), rights created by an enforceable order (legal rights), rights justified before enactment (moral rights), rights as control over another's duty (will theory), rights as protections of interests (interest theory), an obligation owed to others or institutions (a duty), the duty-centred moral order of the Indian tradition (dharma), ethical self-rule as well as political independence (swaraj), truth-force, open self-suffering resistance (satyāgraha), answerability, enforceability and responsiveness for public power (accountability), the state as an instrument of prior persons (mechanistic theory), the whole as partly constitutive of the person's good (organic theory), a protected sphere of non-interference (negative freedom), effective capacity to pursue a life-plan (positive freedom), coercion only to prevent harm to others (the harm principle), interference for the person's own good (paternalism), fair terms without one imposed ideal (neutrality), public cultivation of genuine goods (perfectionism), a moral duty to obey because it is law (political obligation), a reason independent of the law's content (content-independence), taking a benefit while refusing its burden (free-riding), a directive replacing private calculation (pre-emptive reason), authority justified by improved conformity with applicable reasons (the service conception), standards with weight rather than all-or-nothing application (principles), refusal to be personally complicit (conscientious objection), public, non-violent, penalty-accepting breach (civil disobedience), obstruction of a grave particular injustice (resistance), replacement of the constitutional order (revolution). Provenance is examinable: **Dworkin, Taking Rights Seriously, 1977; Thoreau, Civil Disobedience, 1849; the Salt Satyagraha - march begun March 1930, salt law broken 6 April 1930; Ambedkar's Constituent Assembly concluding address, 25 November 1949; Article 51A, inserted by the Constitution (Forty-second Amendment) Act, 1976, non-justiciable.** No page, chapter, edition or invented quotation is attached to any of them.*

## What this workbook contains

| Component                                                      | Count |
|----------------------------------------------------------------|-------|
| Original diagnostic MCQs - 24 core plus 8 remedial drills      | 32    |
| Question-specific option explanations                          | 128   |
| Unique examiner traps                                          | 32    |
| Directly owned verified PYQs solved in full, 2018-2025         | 9     |
| Original solved Mains models - two each at 10, 15 and 20 marks | 6     |

## How to use it

1. Attempt the twenty-four core MCQs without notes, then read every option explanation, including those for the options you rejected. The key sequence is **unpatterned** - each answer was fixed independently - so no cycle can be guessed, and option lengths are matched so that the answer cannot be spotted by shape.
2. Work the eight remedial drills only after the core set. They target the obligation-family test confusion, the collapse of the four disobedience rungs, the Simmons-Raz swap, the claim that Bentham rejected all rights, the mis-dating of Thoreau, Gandhi and Ambedkar, the mis-citation of Article 51A and the misuse of non-justiciability as a moral argument, the equation of limitation with nullification, and the ownership breaches that cost marks every year on this clause.
3. Attempt each previous-year part under time before reading its solution. **Decide the direction from the stem first**: five owned parts are rights parts, two pair duties with accountability, and two concern the theory of the relation itself.
4. Write the six original models in full. Two are 10-mark, two 15-mark and two 20-mark, and each sits inside the declared word band - **10 marks about 150 to 220 words, 15 marks about 250 to 330, 20 marks about 330 to 400**.
5. Check every answer against the traps: Bentham read as an enemy of all rights, correlativity asserted for liberties, Gandhi written as anti-rights, Article 51A used as moral proof or mis-dated, accountability reduced to elections, Hegel presented as defending every actual state, Aristotle called a modern individualist, the four rungs merged, Simmons and Raz swapped, and any script that imports Austin, Kelsen and Hart, the forms of democracy, or anarchism and Marxism as full ideologies from another owner.

## BASIC MCQS / REMEDIATION

### 32 original MCQs - 24 core diagnostics and 8 remedial error-targeting drills

**Answer placement:** each correct option was fixed **independently**, so the key sequence is unpatterned rather than rotated and no cycle such as ABCD - or its reverse - can be used to guess. Options are matched for length, specificity, grammar and visible formatting so that the answer cannot be spotted by shape alone. Every question carries four question-specific option explanations and one unique examiner trap.

**Coverage:** the twenty-four core questions run across the whole printed clause - *Individual and State : Rights; Duties and Accountability* - together with the coercive claim that makes the relation require justification, the mechanistic and organic pictures and the six relation-models, the analysis of a right into holder, content, bearer and ground, Locke's fiduciary trust and right of resistance, Bentham's demand for claimant, duty-bearer and remedy, Hohfeld's four incidents with their correlatives and the bundling of ordinary rights, the will and interest theories with their mirrored hard cases, human-rights universality against cultural relativism, the Indian duty-idiom tested by the human-rights doctrine, the collision argument against unconditional rights, legal and moral duties and what law cannot codify, Gandhi's duty-centrism with Article 51A and its non-justiciability, the modal split that answers the correlativity stem, the priority criterion that answers the duty-and-accountability stem, the three dimensions of accountability and its three arenas, Dworkin's rules-against-principles and rights as trumps, the harm principle with the soft and hard paternalism split, neutrality against perfectionism, the idealist, welfare and communitarian corrections with Hegel and Green kept apart, the anarchist and Marxist challenges aimed at different targets, the social contract read as a sequence of changes, and the Plato-Aristotle comparison on statism and individualism. The eight remedial drills attack the errors that cost marks every year on this clause: mistaking which obligation family fails which test, collapsing the four rungs of the disobedience ladder, swapping Simmons and Raz, writing that Bentham rejected all rights, mis-dating or misclassifying Thoreau, Gandhi and Ambedkar, mis-citing Article 51A or treating non-justiciability as a moral argument, equating limitation of a right with its nullification, and importing material owned by Sovereignty, Political Ideologies, Forms of Government or Social and Political Ideals.

### MCQ 1. Why the individual-state relation requires justification at all

Clubs, congregations and employers all impose obligations. On the account developed in this package, what makes the state's claim different in kind, and what follows from that difference?

- A. The state is larger and older than other associations, so its obligations extend to more people and over longer periods of time.
- B. The state binds persons who never agreed to be bound, so its coercion must be justified in three directions - as a limit, as a claim and as an answer.
- C. The state alone pursues the common good, so its obligations override the partial purposes of every other association a person may join.
- D. The state alone possesses legal personality, so its obligations are enforceable in a way that private associational obligations can never be.

**Answer: B.**

#### Option explanations:

- **A:** Incorrect: scale and antiquity are contingent features, and a small or recent state raises exactly the same problem of justification as a large or ancient one.
- **B:** Correct: the state is the one association a person neither joins nor may simply leave, which is why the printed terms rights, duties and accountability arise as three directions of one relation.
- **C:** Incorrect: that the state pursues the common good is a contested claim belonging to the organic and perfectionist models, not the feature that generates the problem.
- **D:** Incorrect: enforceability describes how obligations operate once legitimate; the prior question is why coercion of the unconsenting is legitimate at all.

**Examiner trap 1:** Opening a paper on this clause with a definition of the *state* or with "man is a social animal" spends the first paragraph on the bearer of the claim rather than on the justification of its coercion, which is what every owned part actually tests.

### MCQ 2. What the mechanistic-organic distinction is about

The owner insists that the organic and mechanistic theories are "rival logical metaphors". What exactly is the distinction a distinction about?

- A. Whether the state grew historically from the family and the village, or was founded at an identifiable moment by an act of political will.
- B. Whether political institutions should be centralised in one authority, or dispersed among associations that command real loyalty.
- C. Whether the state should be described by the methods of the natural sciences, or by the interpretive methods proper to social life.
- D. Whether individual purposes are logically prior to the state, or the political whole is partly constitutive of the person's good.

**Answer: D.**

#### Option explanations:

- **A:** Incorrect: this is a historical question about origins, whereas the distinction concerns explanatory priority and holds whatever the actual history was.
- **B:** Incorrect: centralisation against dispersal is the monist-pluralist question owned by Sovereignty, and organic theorists are not committed to centralisation.
- **C:** Incorrect: the metaphors are not methodological prescriptions; the owner expressly warns that they are not literal biology or engineering.
- **D:** Correct: mechanistic theory treats the state as a means to prior individual ends, while organic theory treats the political whole as partly constitutive of the person's good.

**Examiner trap 2:** Writing the organic theory as a literal biological claim - that the state is an animal with organs - converts a serious thesis about logical priority into an easily refuted metaphor, and it forfeits the 2024 statism-individualism route entirely.

**MCQ 3. What turns a claim into a right**

A candidate writes: "Every human being has a right to be respected." On the analysis given in this package, what is missing before that sentence states a right?

- A. A ground that justifies the claim, together with an identifiable bearer who is constrained and a specification of what the constraint requires.
- B. A legal enactment recognising the claim, since only an enforceable statutory provision can convert an aspiration into a genuine right.
- C. A demonstration that the interest asserted is more urgent than the competing interests of other persons who might be affected.
- D. A showing that the claim is accepted by the community, since social recognition is what distinguishes a right from a private preference.

**Answer: A.**

**Option explanations:**

- **A:** Correct: a right is a *justified* claim, and the owner's four demands are a holder, a content, a bearer who is constrained, and a ground of justification.
- **B:** Incorrect: this states the positivist answer to the question of ground as though it were the definition, and moral rights exist precisely where legal enactment does not.
- **C:** Incorrect: urgency is the mark of a need, and the owner is explicit that a need may be urgent without yet being a right.
- **D:** Incorrect: social recognition is one candidate standard of justification among several - nature, law, morality, utility, dignity, interest, autonomy - not the criterion as such.

**Examiner trap 3:** Defining a right as "what every human deserves by birth" smuggles the natural-rights answer to the question of ground into the definition, which makes the Locke-Bentham dispute unstateable in the very next paragraph.

**MCQ 4. Locke's natural rights and the fiduciary state**

Which statement gives Locke's position in the form that the owned social-contract part rewards?

- A. Individuals hold life, liberty and property under the sovereign's protection, and may withdraw obedience whenever the sovereign's commands become imprudent.
- B. Individuals hold no rights before political society, but acquire life, liberty and property as the first grants a legitimate legislature confers upon them.
- C. Individuals hold life, liberty and property in the state of nature, and government is a fiduciary trust for their protection which may be forfeited and resisted.
- D. Individuals hold life, liberty and property by natural law, and therefore owe the sovereign an irreversible transfer of judgment in exchange for peace.

**Answer: C.**

**Option explanations:**

- **A:** Incorrect: it reverses the direction of grounding by making rights depend on protection, and it substitutes imprudence for the violation of trust that Locke actually requires.
- **B:** Incorrect: this is the positivist position Locke is arguing against; his whole point is that the moral standing of persons precedes political authority.
- **C:** Correct: rights precede the state, government holds them in trust, and violation of the trust justifies resistance - the three elements the owner attaches to Locke.

- **D:** Incorrect: the irreversible transfer for the sake of peace is Hobbes's contract, and importing it destroys the contrast on which the 2024 part turns.

**Examiner trap 4:** Merging Locke's contract with Hobbes's - treating both as "men left the state of nature and submitted to a sovereign" - erases trust, limitation and the right of resistance, which are precisely the changes that make Locke a development rather than a repetition.

#### MCQ 5. Bentham's challenge, stated precisely

Bentham calls natural rights "nonsense upon stilts". What is he actually claiming?

- A. Not that rights are absurd, but that a right exists where an enforceable legal order supplies a claimant, a duty-bearer and a remedy.
- B. Not that rights are useless, but that they should be granted only where granting them maximises aggregate happiness across the whole community.
- C. Not that rights are unreal, but that they are moral rather than legal entities and therefore belong to ethics rather than to jurisprudence.
- D. Not that rights are meaningless, but that they belong to the sovereign alone, who may distribute them to subjects at his own discretion.

**Answer: A.**

#### Option explanations:

- **A:** Correct: the owner is explicit that Bentham rejects *natural* rights rather than rights as such, and that his positive test is claimant, duty-bearer and remedy.
- **B:** Incorrect: this substitutes a general utilitarian criterion for the specific positivist test, and the owner attaches the claimant-duty-bearer-remedy formula to Bentham here.
- **C:** Incorrect: it inverts his position, since the point of the attack is that rights *without* institutional specification are inflated and dangerous.
- **D:** Incorrect: sovereign discretion is not the claim; the requirement is an enforceable legal system with identifiable relations, not the will of a person.

**Examiner trap 5:** Writing that Bentham "denied all rights" makes the 2025 correlativity part unanswerable, because his positivism supplies the strongest reason for holding that rights and duties are institutionally linked through remedy.

#### MCQ 6. Hohfeld's four incidents and their correlatives

Which line correctly pairs each Hohfeldian incident with its correlative?

- A. Claim-right and no-right; liberty and duty; power and disability; immunity and liability.
- B. Claim-right and duty; liberty and no-right; power and liability; immunity and disability.
- C. Claim-right and liability; liberty and disability; power and duty; immunity and no-right.
- D. Claim-right and immunity; liberty and power; duty and liability; no-right and disability.

**Answer: B.**

#### Option explanations:

- **A:** Incorrect: it pairs each incident with its *opposite* rather than its correlative, which is the standard confusion the table is designed to prevent.
- **B:** Correct: these are the four correlative pairs exactly as the owner sets them out, and the first pair is the basis of every rights-duties discussion.
- **C:** Incorrect: liability correlates with power and not with a claim-right, and duty correlates with a claim-right and not with a power.
- **D:** Incorrect: it pairs incidents with other incidents rather than with correlatives, so no relation of the required kind is stated at all.

**Examiner trap 6:** Reducing Hohfeld to the claim-right-duty pair alone leaves three of the four incidents unmentioned, and it is precisely the omitted liberty that defeats the universal correlativity thesis in the 2025 stem.

### MCQ 7. Bundling, and what a liberty does not entail

Freedom of speech is analysed in this package as a bundle of Hohfeldian incidents. Which statement about that bundle is correct?

- A. It is a single claim-right, so every other person bears a positive duty to enable the speaker's expression in all contexts.
- B. It is a pure immunity, so no ordinary legal authority may alter its content, and no question of correlative duties arises at all.
- C. It is a power, so the speaker may unilaterally alter the legal relations of those who hear or publish what has been said.
- D. It bundles a liberty, a contextual claim-right against censorship and an immunity, but includes no general claim-right to a platform.

**Answer: D.**

#### Option explanations:

- **A:** Incorrect: treating the whole bundle as one claim-right generates the false conclusion that others owe positive assistance, which a liberty never requires.
- **B:** Incorrect: the immunity is one component of the bundle, and contextual claim-rights against censorship do generate correlative duties in officials.
- **C:** Incorrect: a power alters legal relations, which is not what speaking does; the incident is misassigned even though powers are genuine Hohfeldian positions.
- **D:** Correct: the owner's analysis gives liberty, contextual claim-right and immunity together, while denying any general claim-right that others provide a platform.

**Examiner trap 7:** Inferring from "I have a right to speak" that others are bound to provide an audience, a platform or a publisher confuses a liberty with a claim-right, which is the commonest category mistake in rights writing.

### MCQ 8. Will theory against interest theory

Why does the owner treat the will/interest dispute as unresolved rather than as settled in favour of one side?

- A. Because will theory is analytic while interest theory is normative, so the two operate at different levels and never actually meet.
- B. Because interest theory is a twentieth-century development and will theory is classical, so comparing them commits an anachronism.
- C. Because each theory is refuted on precisely the case where the other is strongest - the incapable holder and the competent waiver.
- D. Because both theories were designed for private law, so neither can be transferred to questions about the individual and the state.

**Answer: C.**

#### Option explanations:

- **A:** Incorrect: both are accounts of what justifies treating a claim as a right, so they meet directly and answer the same question differently.
- **B:** Incorrect: the dispute is contemporary on both sides and the owner presents it as a live choice between two grounds, not as a chronological artefact.
- **C:** Correct: strict will theory cannot accommodate the rights of infants and the severely disabled, while strict interest theory struggles to explain lawful waiver by a competent adult.
- **D:** Incorrect: the owner deploys the dispute directly on the rights of children and on the 2025 correlativity question, so the transfer is exactly what is being made.

**Examiner trap 8:** Describing interest theory as "the welfare theory" recasts a claim about what grounds a right as a policy preference, and it obscures the fact that the right against assault is equally well explained by it.



### MCQ 9. Human rights: universality and the relativist challenge

Which formulation states the balanced position the owner defends on the 2018 stem?

- A. Human rights are universal in content and in institutional form, so any variation in legal expression is a failure of implementation rather than a legitimate difference.
- B. Human rights are the product of one civilisation's history, so their claim to universality is best replaced by a plurality of locally authoritative moral codes.
- C. Human rights are universal only where a treaty has been ratified, so the scope of the doctrine is fixed by consent rather than by an appeal to dignity.
- D. Human rights express a common aspiration to dignity and protection from domination, so core protections may be universal while institutional expression can vary.

**Answer: D.**

#### Option explanations:

- **A:** Incorrect: the owner expressly denies that universality requires uniformity, and insisting on identical institutional form is what makes universalism resented.
- **B:** Incorrect: this concedes the substance rather than the idiom, and once the prohibition on degradation becomes local the phrase "human rights" denotes nothing.
- **C:** Incorrect: consent-based scope is the contract framework whose inadequacy the 2021 part exposes, since human rights aspire beyond citizenship and agreement.
- **D:** Correct: universality of aspiration with plurality of articulation, and a non-negotiable core, is the position the owner's three-column debate grid reaches.

**Examiner trap 9:** Answering the 2018 stem as a straight choice between universalism and relativism ignores the stem's own phrase "common human aspiration", which already contains the distinction between aspiration and articulation that the marks reward.

### MCQ 10. Indian tradition tested by the human-rights doctrine

The 2020 stem asks whether Indian tradition is *antagonistic* to individual rights. Why does the owner reject both a straight "yes" and a straight "no"?

- A. Because the tradition articulates human worth through a duty-centred idiom, which neither defends cruelty nor contains claim-rights against the state.
- B. Because the tradition is internally plural, so no single answer can be given about texts and schools that disagree among themselves on every question.
- C. Because the question is historical rather than philosophical, and the philosopher's task is to describe the tradition rather than to evaluate it at all.
- D. Because rights and duties are correlative, so a tradition that emphasises duties has already affirmed the corresponding rights without needing to name them.

**Answer: A.**

#### Option explanations:

- **A:** Correct: to be antagonistic the tradition would have to defend cruelty or deny moral worth, and to be identical it would have to assert claim-rights against political authority; it does neither.
- **B:** Incorrect: internal plurality is true of every tradition and would make the question unanswerable rather than answerable in the qualified way the owner requires.
- **C:** Incorrect: the stem explicitly directs evaluation "by taking recourse to the doctrine of human rights", which is an instruction to test rather than to describe.
- **D:** Incorrect: correlativity is strict only for claim-rights, so emphasis on duty does not automatically generate the corresponding entitlements.

**Examiner trap 10:** Writing that Indian tradition is simply antagonistic to individual rights collapses an idiom into an enmity, and the corrective is not romanticism either - the answer must name the risk that duty-language can sacralise hierarchy.

**MCQ 11. Unconditional rights and the collision argument**

Why does the owner conclude that unconditional rights are self-defeating rather than merely socially dangerous?

- A. Because unconditional rights would require unlimited state resources, and no government can supply the enforcement that absolute claims would demand.
- B. Because unconditional rights would abolish duties, and a normative order without duties cannot generate the compliance that rights require in practice.
- C. Because rights are claims plural persons must be able to hold at once, and an unlimited claim destroys the coexistence that makes rights exercisable.
- D. Because unconditional rights would prevent all legislation, since any statute necessarily restricts some liberty of some person somewhere in the community.

**Answer: C.**

**Option explanations:**

- **A:** Incorrect: this is a resource argument about enforcement capacity, whereas the owner's argument is internal to the concept and does not depend on cost.
- **B:** Incorrect: unconditional rights do not abolish duties; the difficulty is that unlimited claims generate incompatible duties that cannot all be discharged.
- **C:** Correct: if every asserted liberty were absolute, collisions would be unavoidable and unresolvable, because any resolving procedure would itself be a condition.
- **D:** Incorrect: it overstates the point into a claim about legislation as such, which is a political prediction rather than the conceptual failure the owner identifies.

**Examiner trap 11:** Equating the limitation of a right with its destruction concedes the whole argument to the other side, since the abuse to be feared is *arbitrary* restriction, not the principled coordination that makes coexistence possible.

**MCQ 12. Legal and moral duties, and what law cannot supply**

Which statement gives the owner's controlling argument about the relation between legal and moral duty?

- A. Moral duties are legally irrelevant, so a political theory concerned with institutions may safely confine itself to duties that courts can enforce.
- B. A legal order requires compliance but cannot codify the whole of ethical life, so it depends on habits such as tolerance and restraint that law cannot manufacture.
- C. Legal duties are derived from moral duties, so any statute that conflicts with conscience lacks legal validity and imposes no obligation of any kind.
- D. Moral duties become legal duties as societies mature, so the distinction marks a stage of development rather than a permanent difference in kind.

**Answer: B.**

**Option explanations:**

- **A:** Incorrect: the owner argues the opposite, that political life collapses without informal ethical discipline and that law presupposes a culture sustaining it.
- **B:** Correct: this is the owner's central claim, and it explains why some duties should remain moral because coercing them would be self-defeating.
- **C:** Incorrect: this is a natural-law thesis about validity that the owner does not assert; it also confuses legal validity with moral legitimacy.

- **D:** Incorrect: traffic runs in both directions and some duties should remain moral permanently, so the difference is not merely developmental.

**Examiner trap 12:** Dismissing moral duties as too vague for political theory removes exactly the resources needed for the 2023 stem, in which duty and accountability are asked to bear weight that no enforceable rule could carry.

### MCQ 13. Gandhi's duty-centrism and Article 51A

Which statement handles Gandhi and the Fundamental Duties in the form the owner requires?

- A. Gandhi subordinates rights to duties, and Article 51A gives that subordination legal force by making civic duties enforceable against citizens.
- B. Gandhi rejects rights as a Western import, and Article 51A restores the indigenous duty-idiom by placing obligations before entitlements in the text.
- C. Gandhi treats duty as the moral source of rights, and Article 51A registers the same thought while remaining non-justiciable and settling no moral thesis.
- D. Gandhi treats duties and rights as strictly correlative, and Article 51A completes the Constitution by supplying the duties that Part III presupposes.

**Answer: C.**

#### Option explanations:

- **A:** Incorrect: Fundamental Duties are expressly non-justiciable, so no legal force of the kind described exists, and Gandhi's claim is about moral source rather than subordination.
- **B:** Incorrect: Gandhi is not anti-rights, and reading Article 51A as restoring an indigenous order over an alien one misstates both the philosophy and the provision.
- **C:** Correct: duty educates the moral self so that rights become secure, and the constitutional text registers the balance while its non-justiciability proves nothing moral either way.
- **D:** Incorrect: strict correlativity holds only for claim-rights, and Article 51A is not a schedule of correlatives to Part III.

**Examiner trap 13:** Citing Article 51A as evidence that duties are morally prior treats a non-justiciable constitutional provision as a philosophical demonstration, when the owner is explicit that legal status settles no moral question.

### MCQ 14. The 2025 stem: obligation, entitlement and the modal word

"Duties are of the nature of obligation while Rights are of the nature of entitlement. Therefore there is no necessary connection between the two." What is the correct assessment?

- A. The premise is false and the inference valid, since obligation and entitlement are the same relation described from two directions.
- B. The premise is sound and the inference invalid, since claim-rights are strictly correlative to duties while liberties are not.
- C. The premise is false and the inference invalid, since every right of every kind entails a duty in some determinate person.
- D. The premise is sound and the inference valid, since analytically distinct concepts can never stand in a necessary relation.

**Answer: B.**

#### Option explanations:

- **A:** Incorrect: the premise is sound - obligation and entitlement are genuinely distinct concepts - and the owner concedes this explicitly before attacking the inference.
- **B:** Correct: analytic distinguishability does not entail social separability, and Hohfeld supplies the split that makes the connection conceptual for one class and institutional for the rest.
- **C:** Incorrect: it overreaches, because a liberty has as its correlative only a no-right and imposes no positive duty of assistance.

- **D:** Incorrect: distinct concepts can stand in necessary relations, as claim-right and duty do, so the general principle asserted is false.

**Examiner trap 14:** Answering the 2025 stem with "rights and duties are two sides of the same coin" ignores the modal word entirely and asserts the very universality that the liberty case refutes.

#### MCQ 15. The 2023 stem: priority, and the criterion it requires

The 2023 part asks whether duty and accountability must be given priority over rights. What must the answer supply before it ranks anything?

- A. A criterion of priority, distinguishing ethical priority in motivating conduct from political priority in protecting persons against abuse.
- B. A survey of constitutional provisions, showing which of the three the Indian Constitution places first in its own textual sequence.
- C. A definition of the state, since the stem's phrase "better functioning of a State" makes the nature of the state the primary issue.
- D. An empirical judgment about whether citizens in fact perform their duties, since priority claims depend on observed civic behaviour.

**Answer: A.**

#### Option explanations:

- **A:** Correct: ranking without a standard is assertion, and the owner's criterion separates what motivates good conduct from what protects persons against abuse.
- **B:** Incorrect: textual sequence in a constitution is a drafting fact, and the owner warns that legal status does not settle philosophical priority.
- **C:** Incorrect: defining the state is preliminary at best; the stem asks for a ranking among three terms, not for an account of their bearer.
- **D:** Incorrect: whether citizens perform duties is a sociological question, and even universal non-performance would not establish that duty should rank first.

**Examiner trap 15:** Dropping the word *accountability* from the 2023 stem discards a third of the question and removes precisely the term that prevents a duty-first answer from collapsing into a demand for submission.

#### MCQ 16. The three dimensions inside accountability

Which line states the three dimensions of accountability together with the failure that follows when each is isolated?

- A. Transparency, participation and efficiency; isolated, they produce respectively opacity, exclusion and waste in the administration of public power.
- B. Elections, courts and public opinion; isolated, they produce respectively majoritarianism, legalism and the tyranny of transient popular feeling.
- C. Legality, morality and prudence; isolated, they produce respectively formalism, moralism and the subordination of principle to convenience.
- D. Answerability, enforceability and responsiveness; isolated, they produce respectively ritual, arbitrariness and correction without prospective rules.

**Answer: D.**

#### Option explanations:

- **A:** Incorrect: these are governance values rather than the owner's analytic dimensions, and the owner expressly distinguishes accountability from efficiency.
- **B:** Incorrect: these are the three *arenas* in a garbled form, and arenas are institutional sites rather than dimensions of the concept.
- **C:** Incorrect: legality and morality name two of the arenas, and prudence appears nowhere in the owner's analysis of the concept.

- **D:** Correct: the official must answer, an authorised forum must judge, and effective remedy or correction must remain possible - each with its named failure mode.

**Examiner trap 16:** Collapsing accountability into elections leaves out enforceability and responsiveness altogether, and it makes the 2019 part unanswerable because the reciprocal structure cannot be described with a single mechanism.

### MCQ 17. The three arenas, and the asymmetry between two of them

Which statement correctly captures the relation between legal and political accountability?

- A. A legally wrongful act does not become right because it is electorally supported, so legal accountability is not answerable to popularity.
- B. A legally wrongful act is cured by electoral endorsement, since in a democracy the people are the ultimate source of legal validity.
- C. Legal and political accountability are alternatives, so a system with strong courts requires correspondingly weaker electoral scrutiny.
- D. Legal accountability is a subset of political accountability, since courts derive their authority from the same popular mandate as legislatures.

**Answer: A.**

#### Option explanations:

- **A:** Correct: the owner states this asymmetry directly, and it is what distinguishes rule of law from mere rule by power.
- **B:** Incorrect: it converts popularity into legality and destroys the point of legal accountability, which is to restrain what majorities may do.
- **C:** Incorrect: the arenas are complementary rather than substitutable, and political accountability includes opposition, deliberation and publicity beyond voting.
- **D:** Incorrect: legal accountability applies the law to state action and is not reducible to the mandate, which is exactly why it can override popular preference.

**Examiner trap 17:** Treating political accountability as periodic voting alone omits opposition, deliberation, publicity and criticism, and it lets an electoral mandate be presented as a complete answer to a question about legitimacy.

### MCQ 18. Dworkin: rules, principles, and rights as trumps

Why does the owner include Dworkin in a clause about rights, duties and accountability?

- A. Because he supplies the pedigree test by which valid legal rules are identified, completing the account of legal accountability begun by Austin.
- B. Because he demonstrates that judges in hard cases legislate afresh, which shows that adjudication is a political rather than a legal activity.
- C. Because he converts rights from concessions granted by the state into standards constraining it, so adjudication becomes a mode of accountability.
- D. Because he establishes that moral principles are legally binding only after a legislature has expressly incorporated them into enacted law.

**Answer: C.**

#### Option explanations:

- **A:** Incorrect: the pedigree test belongs to the positivism Dworkin attacks, and the Austin-Kelsen-Hart sequence is owned by Sovereignty in any case.
- **B:** Incorrect: Dworkin's claim is the reverse - judges in hard cases claim to be finding the law rather than making it, which is the premise of his argument.
- **C:** Correct: rights function as trumps against collective goals, so a court holding the state to a principle is exercising accountability, not merely settling a dispute.

- **D:** Incorrect: the whole point is that principles are legally binding although no pedigree test identifies them, which is why express incorporation is not required.

**Examiner trap 18:** Re-expounding Austin, Kelsen and Hart inside this clause imports material owned by Sovereignty and crowds out the three arenas that the accountability stem actually needs.

### MCQ 19. The harm principle and the paternalism split

Which statement gives the liberal controls in the form the owner defends?

- A. Coercion of a competent adult is justified whenever officials reasonably believe the person's own choice will damage her long-term interests.
- B. Coercion of a competent adult is presumptively justified to prevent harm to others, and soft paternalism checks voluntariness while hard paternalism overrides it.
- C. Coercion of a competent adult is never justified, since any interference with a voluntary choice violates the priority of the person over the state.
- D. Coercion of a competent adult is justified only where the conduct is entirely self-regarding, since social spillovers place conduct beyond the state's reach.

**Answer: B.**

#### Option explanations:

- **A:** Incorrect: this is hard paternalism stated as the rule, and the harm principle exists precisely to place official judgment of another's good under special suspicion.
- **B:** Correct: the harm principle supplies the presumption, and the soft/hard split separates checking that a choice is informed and voluntary from overriding one that is.
- **C:** Incorrect: liberalism permits coercion to prevent harm to others, so an absolute prohibition misstates the position and abandons the harm principle.
- **D:** Incorrect: it inverts the principle, since self-regarding conduct is the protected case and harm to others is the ground for interference.

**Examiner trap 19:** Equating positive freedom or welfare provision with unlimited paternalism ignores the owner's control that enabling provision must remain rights-bound, and it discards the soft/hard distinction that makes most paternalism disputes tractable.

### MCQ 20. Neutrality against perfectionism

Which pairing states the neutrality-perfectionism dispute together with its control?

- A. Neutrality forbids all state action on education and health; perfectionism permits it; the control is that provision must be democratically authorised.
- B. Neutrality requires the state to have no values; perfectionism requires it to have one; the control is that values must be inherited rather than chosen.
- C. Neutrality is descriptive and perfectionism normative; the control is that descriptive claims cannot generate the prescriptions perfectionists draw from them.
- D. Neutrality secures fair terms without imposing one comprehensive ideal; perfectionism permits cultivation of genuine goods; promotion must stay rights-bound and contestable.

**Answer: D.**

#### Option explanations:

- **A:** Incorrect: neutral liberalism does not forbid education or health provision, which can be justified through positive freedom without imposing a comprehensive ideal.
- **B:** Incorrect: no serious neutralist claims the state has no values, and the owner notes that neutrality is never institutionally value-free.
- **C:** Incorrect: both positions are normative, since each prescribes what the state may legitimately do about conceptions of the good.

- **D:** Correct: this is the owner's grid, with the control that promotion of the good must remain rights-bound and contestable and dissenters must retain equal civic standing.

**Examiner trap 20:** Calling the private sphere non-political in every respect forgets the owner's control that privacy protects autonomy but cannot immunise harm, dependence or domination.

#### MCQ 21. Hegel, Green, welfare and community - kept apart

Which statement keeps the four post-liberal positions distinct in the way the owner requires?

- A. Hegel and Green both hold that the existing state realises freedom, welfare liberals extend that claim to the economy, and communitarians extend it to culture.
- B. Hegel locates freedom in rational ethical institutions, Green makes the state remove remediable hindrances, welfare liberals answer hollow rights, communitarians answer the unencumbered self.
- C. Hegel and Green are indistinguishable in substance, while welfare liberalism and communitarianism differ only in whether the good is material or cultural.
- D. Hegel treats the state as an instrument, Green treats it as an end, welfare liberals treat it as a market corrector, and communitarians treat it as a tradition's guardian.

**Answer: B.**

#### Option explanations:

- **A:** Incorrect: Hegel's claim concerns the *rational* state within ethical life, not the sanctification of whichever government exists, and Green expressly leaves agency with citizens.
- **B:** Correct: four distinct corrections to the pre-social chooser, each stated with the specific work the owner assigns to it.
- **C:** Incorrect: Green's removal of remediable hindrances and conditional obligation is exactly what distinguishes his position from Hegel's and makes idealism defensible.
- **D:** Incorrect: it reverses Hegel and Green, since it is Green who insists the state is a means to the common good rather than an end absorbing persons.

**Examiner trap 21:** Treating Hegel as a defender of every actual state confuses a thesis about rational ethical institutions with automatic sanctification of incumbent government, and it invites the easy objection that idealism licenses coercion as liberation.

#### MCQ 22. The anarchist and Marxist challenges attack different things

What exactly distinguishes the anarchist from the Marxist challenge in this owner?

- A. The anarchist denies that coercive authority has a demonstrated general right to rule; the Marxist denies that formally equal rights are materially effective.
- B. The anarchist denies that the state can be efficient; the Marxist denies that it can be just, so the two objections address performance and principle respectively.
- C. The anarchist rejects all rights as instruments of authority; the Marxist accepts rights but demands that they be granted by a workers' state instead.
- D. The anarchist argues from human nature and the Marxist from history, so they differ in method while reaching the identical practical conclusion.

**Answer: A.**

#### Option explanations:

- **A:** Correct: the targets differ - legitimacy of coercion as such against the class form and material effectiveness of rights - which is why merging them weakens both.
- **B:** Incorrect: efficiency is not the anarchist's target, and the Marxist critique is about the class character of the state rather than justice in the abstract.
- **C:** Incorrect: the owner is explicit that Marxism does not simply deny all rights, and philosophical anarchism is a doubt about obligation rather than a rejection of rights.



- **D:** Incorrect: methods and conclusions both differ, and presenting them as reaching an identical conclusion erases the distinct objections each must answer.

**Examiner trap 22:** Presenting anarchism as advocacy of chaos misses that philosophical anarchism doubts political obligation or advocates decentralised association, and it also loses the burden-shifting move that generates the whole obligation grid.

### MCQ 23. Social contract read as a sequence of changes

The 2024 part asks for the *origin and development* of social contract theory. Which line gives the development correctly?

- A. Hobbes secures rights by a revocable trust, Locke relocates sovereignty in the general will, and Rousseau adds a strong sovereign to prevent faction.
- B. Hobbes and Locke both secure peace by irreversible transfer, and Rousseau alone adds limits, trust and a right of resistance against the sovereign.
- C. Hobbes grounds obligation in divine right, Locke in conquest, and Rousseau for the first time in agreement among free and equal persons.
- D. Hobbes secures order by an irreversible transfer, Locke adds trust, limits and a right of resistance, and Rousseau relocates sovereignty in the general will.

**Answer: D.**

#### Option explanations:

- **A:** Incorrect: it scrambles all three, attributing Locke's trust to Hobbes, Rousseau's general will to Locke, and Hobbes's sovereign to Rousseau.
- **B:** Incorrect: Locke's arrangement is a trust rather than a transfer, and the right of resistance is his rather than Rousseau's addition.
- **C:** Incorrect: the whole family grounds obligation in agreement, and its shared achievement is displacing divine right and conquest, not adopting them.
- **D:** Correct: these are the three changes the owner identifies, and naming what each successor alters is what converts chronology into development.

**Examiner trap 23:** Attacking the theory as historically false consumes the answer on a point the owner disposes of in one line, since the value of the contract is normative - what terms free and equal persons could reasonably accept.

### MCQ 24. Plato against Aristotle on statism and individualism

On the owner's account, what makes Aristotle's middle course better than Plato's, and what qualification must accompany the verdict?

- A. Aristotle rejects the natural polis and the common good, which makes him a proto-liberal; the qualification is that he wrote before the concept of rights existed.
- B. Aristotle accepts philosopher-rule but confines it to legislation; the qualification is that his constitution is aristocratic rather than democratic in form.
- C. Aristotle preserves household, property and plurality against excessive unity; the qualification is that both remain perfectionists and his exclusions block modern endorsement.
- D. Aristotle abolishes the guardian class and extends citizenship to all residents; the qualification is that his account of slavery is inconsistent with that extension.

**Answer: C.**

#### Option explanations:

- **A:** Incorrect: Aristotle retains both the natural polis and the common good, and calling him a proto-liberal is precisely the error the owner warns against.
- **B:** Incorrect: philosopher-rule is Plato's arrangement, and Aristotle's objection is to excessive unity rather than to the scope of the ruler's functions.



- **C:** Correct: the intermediate sphere survives in Aristotle, which is what a middle course requires, while perfectionism and the exclusions limit the endorsement.
- **D:** Incorrect: Aristotle does not extend citizenship to all residents, and the exclusions are a limitation on his position rather than an internal inconsistency of that kind.

**Examiner trap 24:** Giving only the first half of the verdict - agreeing that Aristotle steers the better middle without qualifying it - turns a comparative judgment into an anachronistic endorsement and misdescribes both thinkers.

#### MCQ 25. Remedial - which obligation family fails which test

A candidate writes: "Rawls's natural duty of justice shows why I must obey the laws of my own country." Which correction is required?

- A. The natural duty fails **particularity**: it binds one to support any just institution that applies, not distinctively to one's own state.
- B. The natural duty fails **content-independence**: it gives a reason to obey only those laws whose content is independently just.
- C. The natural duty fails **generality**: it binds only those citizens who have knowingly accepted the benefits of the cooperative scheme.
- D. The natural duty fails **defeasibility**: it admits of no defeating conditions and therefore requires obedience even to grave injustice.

**Answer: A.**

#### Option explanations:

- **A:** Correct: the owner records this precisely - a natural duty to support just institutions binds one to *any* just state, which is the particularity failure.
- **B:** Incorrect: content-independence is not the natural duty's characteristic weakness; the duty is owed to institutions rather than assessed law by law.
- **C:** Incorrect: acceptance of benefits is the fair-play criterion, and it is fair play rather than the natural duty that founders on non-excludability.
- **D:** Incorrect: the natural duty is stated as a duty to support *just* institutions, so injustice is a defeating condition built into the formulation.

**Examiner trap 25:** Running all six obligation families in a ten-mark answer produces a list without adjudication; the owner's instruction is to use one family or one contrast, fully worked, and to name the test it fails.

### MCQ 26. Remedial - the four rungs must not be collapsed

Which statement correctly separates civil disobedience from the rungs adjacent to it?

- A. Civil disobedience is covert while conscientious objection is public, and both reject the legitimacy of the legal order in which they occur.
- B. Civil disobedience seeks personal exemption while resistance seeks persuasion, and revolution seeks exemption for an entire class of citizens.
- C. Civil disobedience is essentially public and accepts the legal penalty, which shows it contests one law rather than repudiating law as such.
- D. Civil disobedience differs from resistance only in scale, since both obstruct particular acts of a regime and both may proceed covertly.

**Answer: C.**

#### Option explanations:

- **A:** Incorrect: it inverts the publicity condition and misattributes rejection of legitimacy, which civil disobedience and conscientious objection both accept.
- **B:** Incorrect: exemption is the aim of conscientious objection and persuasion the aim of civil disobedience, so the two are transposed here.
- **C:** Correct: publicity with appeal to shared principles, and acceptance of the legal penalty, are the two defining features the owner identifies.
- **D:** Incorrect: resistance may be covert and may refuse the penalty, and it denies the legitimacy of the acts obstructed, so the difference is not one of scale.

**Examiner trap 26:** Collapsing conscientious objection, civil disobedience, resistance and revolution into one category is the single most common error on this clause, and it forfeits the highest-value structural move available on any obedience stem.

### MCQ 27. Remedial - Simmons and Raz must not be swapped

Which attribution is correct?

- A. Simmons defends the service conception of authority, while Raz argues that no ground establishes a general obligation to obey.
- B. Simmons and Raz both defend philosophical anarchism, differing only over whether the conclusion is practical or merely theoretical.
- C. Simmons defends associative obligation grounded in membership, while Raz defends fair play grounded in acceptance of cooperative benefits.
- D. Simmons argues that the standard grounds fail to bind all and only a particular state's members, while Raz defends the service conception.

**Answer: D.**

#### Option explanations:

- **A:** Incorrect: the two are exactly reversed, and this is the swap the owner explicitly forbids.
- **B:** Incorrect: Raz is not a philosophical anarchist; his service conception is the leading authority-based alternative to that position.
- **C:** Incorrect: associative obligation is anchored in Dworkin and communitarian accounts, and fair play in Hart and Rawls.
- **D:** Correct: Simmons is the canonical modern sceptic about a general obligation; Raz grounds legitimate authority in improved conformity with applicable reasons.

**Examiner trap 27:** Presenting the sceptical conclusion as more radical than it is misreads it, since Simmons denies only a *general, content-independent* duty while conceding that most laws are independently binding.

### MCQ 28. Remedial - what Bentham actually rejected

A script states: "Bentham denied that rights exist." What is wrong with it?

- A. Nothing is wrong, since Bentham's utilitarianism recognises only aggregate welfare and treats individual entitlements as fictions in every context.
- B. Bentham rejected only *natural* rights; a right exists for him where an enforceable legal order supplies a claimant, a duty-bearer and a remedy.
- C. Bentham rejected only *legal* rights, holding that entitlements are grounded in moral reasoning that precedes and constrains legislation.
- D. Bentham rejected only *moral* rights, holding that natural rights survive as constraints on what any legislature may validly enact.

**Answer: B.**

#### Option explanations:

- **A:** Incorrect: the owner records the opposite, and his positive test for a right is institutional rather than a denial of entitlement altogether.
- **B:** Correct: the target is rights asserted without law, and the constructive replacement is the claimant-duty-bearer-remedy structure.
- **C:** Incorrect: legal rights are precisely what he affirms, and grounding entitlement in pre-legal moral reasoning is the position he attacks.
- **D:** Incorrect: natural rights are the object of "nonsense upon stilts", so they cannot be what survives on his account.

**Examiner trap 28:** Once Bentham is misread as an enemy of rights as such, the strongest institutional argument for connecting rights with duties disappears, and the 2025 stem loses its most disciplined line of reply.

### MCQ 29. Remedial - Thoreau, Gandhi and Ambedkar kept distinct

Which line classifies and dates the three illustrations correctly?

- A. Thoreau's *Civil Disobedience* (1849) models individual conscientious refusal; the Salt Satyagraha broke the salt law on 6 April 1930; Ambedkar's "grammar of anarchy" address was on 25 November 1949.
- B. Thoreau's *Civil Disobedience* (1849) models organised mass campaign; the Salt Satyagraha broke the salt law in March 1930; Ambedkar's address was delivered on 26 January 1950.
- C. Thoreau's *Civil Disobedience* (1859) models individual refusal; the Salt Satyagraha concluded on 6 April 1931; Ambedkar's address was delivered on 15 August 1947.
- D. Thoreau's *Civil Disobedience* (1849) models revolutionary resistance; the Salt Satyagraha began on 6 April 1930; Ambedkar's address was delivered on 25 November 1949.

**Answer: A.**

#### Option explanations:

- **A:** Correct: Thoreau is individual withdrawal rather than mass campaign; the march began in March 1930 and the salt law was broken on 6 April 1930; the concluding address was on 25 November 1949.
- **B:** Incorrect: Thoreau's model is not an organised campaign, March 1930 is when the march commenced rather than when the law was broken, and the address date is wrong.
- **C:** Incorrect: all three dates are wrong, and the Constituent Assembly concluding address does not fall in 1947.
- **D:** Incorrect: Thoreau's model is conscientious refusal rather than revolutionary resistance, and 6 April 1930 is the breach of the salt law rather than the start of the march.

**Examiner trap 29:** Presenting Thoreau as Gandhi's blueprint erases the difference between withdrawing personal support and building a public campaign that accepts arrest, which is exactly the distinction the disobedience ladder exists to preserve.

### MCQ 30. Remedial - Article 51A, its provenance and its evidential weight

Which statement uses Article 51A correctly in a philosophical answer?

- A. Article 51A, inserted in 1951, makes Fundamental Duties enforceable and therefore demonstrates that duty is legally prior to right in the Indian order.
- B. Article 51A, inserted in 1978, replaced Fundamental Rights with Fundamental Duties in the constitutional scheme and settles the priority question textually.
- C. Article 51A, inserted in 1976, recognises a right of civil disobedience where constitutional remedies have been exhausted by the affected group.
- D. Article 51A, inserted by the Constitution (Forty-second Amendment) Act, 1976, is non-justiciable, and its non-justiciability settles no moral thesis about duty.

**Answer: D.**

#### Option explanations:

- **A:** Incorrect: the year is wrong, Fundamental Duties are not enforceable, and legal priority would in any case not establish moral priority.
- **B:** Incorrect: the year is wrong and nothing was replaced; Fundamental Duties were added alongside Part III rather than in substitution for them.
- **C:** Incorrect: no Indian provision recognises a right of civil disobedience, which by definition is a breach of law whose actor accepts the penalty.
- **D:** Correct: the provenance is the Constitution (Forty-second Amendment) Act, 1976, and the owner insists that legal status neither proves nor disproves a moral thesis.

**Examiner trap 30:** Claiming that an Indian statute or judgment "recognises a right to civil disobedience" contradicts the concept itself, since the actor's acceptance of the legal penalty is what marks the breach as civil disobedience rather than ordinary law-breaking.

### MCQ 31. Remedial - limitation is not nullification

A script argues: "Since rights may be restricted for public order, rights are not really rights at all." What is the correct reply?

- A. The script is right, because any restriction defeats the claim, and a defeasible entitlement is by definition not a genuine right.
- B. Limitation is not nullification: rights require principled limits to coexist, and the abuse to fear is arbitrary restriction rather than principled coordination.
- C. The script is right about liberties but wrong about claim-rights, since only liberties may be restricted while claim-rights are absolute in scope.
- D. Restrictions are legitimate only if unanimously agreed, so the script is answered by the consent of those whose rights are limited.

**Answer: B.**

#### Option explanations:

- **A:** Incorrect: it confuses defeasibility with unreality, and on that reasoning no right ever asserted in any legal order would qualify.
- **B:** Correct: the owner distinguishes principled, reviewable limitation from arbitrary restriction, and treats limits as the condition of coexistence.
- **C:** Incorrect: claim-rights are also subject to principled limits, and no Hohfeldian incident is exempt from the collision problem.
- **D:** Incorrect: unanimity is not the standard, and requiring it would make coordination impossible while leaving the erosion worry unaddressed.

**Examiner trap 31:** Admitting limits without limiting them concedes the state's case, so the argument must close on accountability - each restriction justified, proportionate and reviewable - rather than on the bare observation that rights are not absolute.

**MCQ 32. Remedial - what this clause does not own**

Which item is developed by a *different* owner and should be named and routed rather than expounded here?

- A. Hohfeld's analysis of claim, liberty, power and immunity, which is developed by the Social and Political Ideals owner.
- B. Gandhi's duty-centrism and the philosophical reading of Fundamental Duties, which are developed by the Forms of Government owner.
- C. The Austin, Kelsen and Hart sequence on the nature of law and legal finality, which is developed by the Sovereignty owner.
- D. The three dimensions of accountability, which are developed by the Crime and Punishment owner as part of the theory of sanction.

**Answer: C.**

**Option explanations:**

- **A:** Incorrect: Hohfeld belongs to this owner, and Social and Political Ideals owns equality, justice and liberty rather than the analysis of rights.
- **B:** Incorrect: Gandhi's duty-centrism and the reading of Article 51A belong to this owner; Forms of Government owns monarchy, theocracy and democracy.
- **C:** Correct: the jurisprudential sequence is owned by Sovereignty; this owner names it and routes it, developing only Dworkin's principles and rights as trumps.
- **D:** Incorrect: accountability is a printed term of this clause, and Crime and Punishment owns the theories and applications of punishment.

**Examiner trap 32:** Importing full accounts of anarchism or Marxism as ideologies, of democracy as a form of government, or of the equality-justice-liberty triad breaches the ownership boundary and displaces the material on which this clause is actually graded.

## PYQS AND ANSWER PRACTICE

**Practice status and source discipline - read once, applies to every solution below**

Every model answer here is independent learner practice and is **never** an official UPSC key; UPSC publishes no descriptive model answer for Philosophy Paper II. Question wording is reproduced exactly as printed in the official papers, including the paper's own capitalisation in **"Is Indian tradition antagonistic to Individual Rights?"** and its own quotation marks around **'Statism'** and **'individualism'** in the 2024 part, which are preserved verbatim inside the question line. The 2018 to 2025 Paper II texts are held locally, and the English wording of every part below follows the repository's verified Socio-Political PYQ ledger. Provenance is treated as examinable: **Dworkin, Taking Rights Seriously, 1977; Thoreau, Civil Disobedience, 1849, first published as "Resistance to Civil Government"; the Salt Satyagraha, march begun March 1930 and the salt law broken on 6 April 1930; Ambedkar's concluding address to the Constituent Assembly, 25 November 1949; Article 51A, inserted by the Constitution (Forty-second Amendment) Act, 1976, non-justiciable; Articles 19(1)(a) and 19(1)(b) with reasonable restrictions under Articles 19(2) and 19(3).** No page, chapter, edition or invented quotation is asserted for Locke, Hobbes, Rousseau, Bentham, Hohfeld, Hart, Rawls, Simmons, Raz, Dworkin, Thoreau, Gandhi, Ambedkar, Plato or Aristotle, and the only quoted phrases are the short ones the sources themselves fix - Bentham's "nonsense upon stilts" and Ambedkar's "grammar of anarchy". **ANALYSIS:** Interpretive disputes - whether correlativity is conceptual or institutional beyond claim-rights, whether the minimum core of human rights can be specified without circularity, whether Dworkin's right-answer thesis survives permanent reasonable disagreement, and whether constitutional channels are genuinely open to a given group - are flagged as contested rather than settled. **WRONG:** No empirical claim is made about any Indian government, party or period.

**Answer-length convention used throughout this package.** UPSC Philosophy Paper II parts are written longer than General Studies answers. The working bands used here are **10 marks - about 150 to 220 words**, **15 marks - about 250 to 330 words**, and **20 marks - about 330 to 400 words**. Every solution below sits inside its declared band, and the demand decoding, the verdict heading and the "why this earns marks" notes are teaching apparatus that sit **outside** the timed word count.

**Coverage. ANALYSIS: Corpus signal:** this clause owns **9 of 112** Socio-Political question-parts in the 2018-2025 corpus, distributed **2018: 1, 2019: 1, 2020: 1, 2021: 1, 2022: 1, 2023: 1, 2024: 2, 2025: 1**. All nine are solved in full below, followed by **six original solved Mains models**, two each at 10, 15 and 20 marks. The internal distribution is worth knowing before the examination: **rights** carry five parts (2018 Q4(a), 2020 Q2(c), 2021 Q4(c), 2022 Q4(b), 2025 Q4(c)); **duties and accountability together** carry two (2019 Q2(a), 2023 Q2(b)); and **the theory of the relation itself** carries two (2024 Q1(b) on the social contract, 2024 Q3(a) on statism and individualism). **ANALYSIS:** Ownership discipline: Austin, Bodin, Laski and Kautilya belong to **Sovereignty**; monarchy, theocracy and democracy as forms to **Forms of Government**; anarchism, Marxism and socialism as ideologies to **Political Ideologies**; equality, justice and liberty themselves to **Social and Political Ideals**; and caste, gender and punishment to their own owners. None of those parts is counted here. **WRONG:** Do not route every occurrence of the word "individual" to this owner: ownership turns on rights, duties, accountability or the normative individual-state relation.

### Solved PYQ 1 · 2018 · Q4(a) · 20 marks

**Question:** "Human rights and human dignity would no longer be the product of a particular culture, rather a common human aspiration for an ideal world." Discuss.

#### Demand decoding

| Element         | Requirement                                                                                      |
|-----------------|--------------------------------------------------------------------------------------------------|
| Directive       | "Discuss" - exposition plus one adjudicated tension, not a survey of declarations                |
| Core issue      | Whether human rights can be universal without being culturally imperial                          |
| Scope boundary  | Twenty marks: the stem's own phrase "common human aspiration" must be made the thesis and tested |
| Key distinction | Universality of <b>aspiration</b> against uniformity of <b>articulation</b>                      |
| Non-negotiables | The three-column debate grid; the relational reading; the non-negotiable minimum core            |

#### Independent model answer

**Thesis. ANALYSIS:** The statement is defensible in the precise form it uses: human rights express a **common human aspiration**, not the property of one civilisation - provided universality of aspiration is not confused with uniformity of institutional articulation.

**The universalist claim. FACT:** Human-rights theory holds that certain rights belong to all human beings simply as human beings. Its argument is that moral concern can be universalised beyond citizenship, religion and culture, and its ground is dignity, equal worth and protection against cruelty, arbitrariness and degradation. **ANALYSIS:** Its presupposition is a minimum moral horizon common to humanity.

**The relativist challenge. CAUTION:** Conceptions of personhood, community, authority and obligation differ across traditions, and the vocabulary of individual claim-rights is historically particular in its formulation. Traditions organised around role, duty and reciprocity may reasonably resist translation into an idiom not their own.

**Adjudicating the tension. ANALYSIS:** The two positions answer different questions. On the **ground of dignity**, the universalist holds that every human has equal worth while the relativist holds that dignity is interpreted through culture; the defensible line is that core protections may be universal while institutional expression varies. On **rights language**, the historical point about Western formulation is conceded; universality of aspiration need not imply uniformity of articulation. On **community against individual**, rights can be read **relationally** - as protections of persons within relationships - without losing protective force. **FACT:** The Indian *dharma* idiom illustrates this: it condemns cruelty and enjoins restraint while beginning from obligation rather than claim, which shows that the aspiration is not idiom-bound.



**Verdict.** ANALYSIS: The stem is right that dignity is a common aspiration rather than a cultural product, and wrong if read as requiring one institutional form for all. CAUTION: The residual difficulty is genuine: which protections belong to the non-negotiable minimum, and who fixes the boundary, remain disputed - but a universality that can be waived by cultural appeal would protect nobody, and that is the one concession the answer must refuse.

### Why this earns marks

**Answer-writing focus:** the stem supplies its own thesis, and scripts that ignore its wording argue a different question - "are human rights universal?" - instead of the one asked, which is whether they are a *cultural product* or a *common aspiration*.

**Exam-length execution - 20 marks, about 330 to 400 words:** thesis two lines; universalist claim four; relativist challenge three; adjudication eight; verdict four.

- **Structure:** thesis from the stem's own phrase -> universalist ground -> relativist challenge -> three-point adjudication -> qualified verdict.
- **Doctrine:** universality thesis; cultural-relativist challenge; relational reading of rights.
- **Evidence:** the three-column debate grid; the *dharma* idiom as a non-Western route to the same protections.
- **Distinction:** aspiration against articulation; core protection against institutional expression.
- **Criticism:** the unfixed boundary of the minimum core, conceded in the verdict rather than concealed.

### Solved PYQ 2 · 2019 · Q2(a) · 20 marks

**Question:** Do rights make citizens accountable to the State? Argue in the context of the present Indian scenario.

### Demand decoding

| Element         | Requirement                                                                                       |
|-----------------|---------------------------------------------------------------------------------------------------|
| Directive       | "Argue" - a position must be taken and defended, not a balanced description offered               |
| Core issue      | The <b>direction</b> of accountability: one-directional subordination or reciprocal answerability |
| Scope boundary  | Twenty marks: the philosophical answer leads; the Indian material illustrates and never proves    |
| Key distinction | Authoritarian reading against democratic reading of the rights-obedience link                     |
| Non-negotiables | The three dimensions; the three arenas; Dworkin's rights as trumps; the legal-status caution      |

### Independent model answer

**Thesis.** CAUTION: Rights do **not** make citizens accountable *to* the state in the sense of subordination; they locate citizen and state alike within a **reciprocal constitutional order** of mutual answerability.

**The two readings.** ANALYSIS: On the **authoritarian reading**, rights are concessions and obedience is their price, so the grantor is also the judge. On the **democratic reading**, rights embed persons in a structure of mutual answerability. The first makes the constitutional relation feudal; the second makes it relational.

**Why the democratic reading is correct.** FACT: Accountability means that those exercising public power must **explain, justify and bear consequences**, and it has three dimensions - answerability, enforceability and responsiveness - each of which fails when isolated: explanation without correction becomes ritual, punishment without reason-giving becomes arbitrary, and reactive correction without prospective rules leaves the next case as exposed. FACT: It operates in three arenas: political answerability to the people through representation, opposition, deliberation and publicity; legal answerability through grievance, review and redress; and moral answerability to conscience, civil society and historical judgment, since legality does not exhaust legitimacy.

**Rights as constraints, not concessions.** FACT: Dworkin, *Taking Rights Seriously* (1977), distinguishes rules, which apply all-or-nothing, from principles, which have weight, and treats rights as **trumps** against collective goals.

ANALYSIS: On that account a court holding the state to a principle exercises accountability rather than merely settling a dispute - which is precisely what the authoritarian reading cannot accommodate.

**The Indian illustration, handled with care.** FACT: Articles 19(1)(a) and 19(1)(b) guarantee speech and peaceable assembly **subject to reasonable restrictions**; Article 51A, inserted by the Constitution (Forty-second Amendment) Act, 1976, lists Fundamental Duties and is **non-justiciable**. ANALYSIS: These show what a legal order does; they do



not settle the philosophical question, because legal permission is not moral justification.

**Verdict. ANALYSIS:** Citizens are accountable **for** law-abiding conduct, civic participation and respect for others' rights; the state is accountable **for** protecting freedom, equality and dignity. **FACT:** Reciprocity is not symmetry, and rights-based citizenship disciplines authority rather than destroying it.

### Why this earns marks

**Answer-writing focus:** the stem's preposition does the work. "Accountable **to** the State" is the authoritarian formulation, and the mark-bearing move is to replace it with "accountable **for**" while showing that the state's own accountability runs the other way.

**Exam-length execution - 20 marks, about 330 to 400 words:** thesis two lines; two readings three; three dimensions and three arenas six; Dworkin three; India three; verdict three.

- **Structure:** thesis on direction -> two readings -> dimensions and arenas -> rights as trumps -> dated Indian illustration -> reciprocal verdict.
- **Doctrine:** accountability as the bridge from authority to legitimacy; rights as constraints on collective goals.
- **Evidence:** Dworkin 1977; Articles 19(1)(a), 19(1)(b) and 51A with the 1976 provenance.
- **Distinction:** accountable *to* against accountable *for*; relational against feudal citizenship.
- **Criticism:** the legal-status caution, stated so that the Indian material illustrates without pretending to prove.

### Solved PYQ 3 · 2020 · Q2(c) · 15 marks

**Question:** Is Indian tradition antagonistic to Individual Rights? Consider it by taking recourse to the doctrine of Human Rights.

### Demand decoding

| Element         | Requirement                                                                                   |
|-----------------|-----------------------------------------------------------------------------------------------|
| Directive       | A yes/no stem with an instructed method - the human-rights doctrine is the testing instrument |
| Core issue      | Whether a duty-centred idiom is hostile to rights or merely antecedent to them                |
| Scope boundary  | Fifteen marks: state the idiom, run the test, concede the risk, close with a synthesis        |
| Key distinction | Different idiom against antagonism; and against identity                                      |
| Non-negotiables | <i>Dharma</i> stated precisely; Gandhi's bridge; the hierarchy risk; Ambedkar's objection     |

### Independent model answer

**Fixing the test. ANALYSIS:** "Antagonistic" is a strong word. A tradition is antagonistic to individual rights only if it defends cruelty, denies moral worth, or licenses arbitrary power over persons. Tested by the human-rights doctrine - dignity, equal worth and protection from cruelty, arbitrariness and degradation - Indian tradition fails to meet that description.

**The idiom, stated exactly. ANALYSIS:** Indian traditions often frame the moral order through **dharma**: role-based obligation, reciprocity, self-restraint, truth and order. The person appears embedded in a web of relations rather than as an abstract individual outside all ties, and the emphasis falls on right conduct and self-mastery. **FACT:** At its strongest, duty here connotes responsibility, restraint and moral vocation - not mere obedience.

**Why this is not antagonism. ANALYSIS:** The tradition affirms what the human-rights doctrine protects, but reaches it through obligation rather than claim. **FACT:** Gandhi makes the connection explicit: rights grow out of well-performed duties, which is a thesis about the **moral source and social sustainability** of rights, not their denial. Duty-first is not necessarily hierarchy-first.

**Why it is not identity either. ANALYSIS:** The tradition does not assert claim-rights against political authority in the modern sense, so the opposite caricature also fails. What it supplies is a rich vocabulary for civic duty that must be **critically filtered** to avoid sacralising hierarchy.

**The concession that must be made. CAUTION:** A duty-centred idiom can leave little space for individual protest and can submerge the person in community. **FACT:** Ambedkar's objection is the sharpest form: in a society still stratified by caste, duty-first framings can be captured by dominant groups.

**Verdict.** ANALYSIS: Indian tradition is not antagonistic to individual rights; it is **antecedent to the rights idiom**. The contemporary synthesis therefore combines duty-language with constitutional rights and moral equality - a filtered continuation rather than a nostalgic return.

### Why this earns marks

**Answer-writing focus:** the stem instructs the method, and a general cultural comparison that never tests the tradition against dignity, cruelty and arbitrariness has not obeyed it. Fix the test in the first three lines.

**Exam-length execution - 15 marks, about 250 to 330 words:** test three lines; idiom four; not-antagonism four; not-identity two; concession three; verdict two.

- **Structure:** fix the test -> state the idiom -> refuse antagonism -> refuse identity -> concede the risk -> synthesis verdict.
- **Doctrine:** *dharma* as duty-idiom; Gandhi on rights as the fruit of duties.
- **Evidence:** the embedded person; responsibility rather than obedience; Ambedkar's capture objection.
- **Distinction:** antecedent idiom against antagonism, and against identity.
- **Criticism:** the hierarchy risk, named rather than dissolved.

### Solved PYQ 4 · 2021 · Q4(c) · 15 marks

**Question:** Evaluate whether the social contract theory adequately addresses the different issues of human rights.

### Demand decoding

| Element         | Requirement                                                                                                            |
|-----------------|------------------------------------------------------------------------------------------------------------------------|
| Directive       | "Evaluate ... adequately" - adequacy is relative to a benchmark, which must be named first                             |
| Core issue      | Whether an agreement-based theory can ground rights that reach beyond the agreeing parties                             |
| Scope boundary  | Fifteen marks: contributions first, then the three excluded categories, then a graded verdict                          |
| Key distinction | Political legitimacy against universal moral standing                                                                  |
| Non-negotiables | Locke and Rousseau's specific contributions; the three excluded categories; the fiction objection answered in one line |

### Independent model answer

**Naming the benchmark.** ANALYSIS: Human rights claim universality **beyond citizenship and consent**. Social contract theory is adequate to that benchmark only if it can ground claims held by persons who are not parties to the agreement.

**What the theory delivers.** FACT: Contract theory explains the origin and justification of the state through an agreement, actual or hypothetical, among individuals, and its common aim is to derive political obligation from the **standpoint of individuals** rather than from divine right or conquest. FACT: Locke contributes rights-limiting government: life, liberty and property precede the state, government is a **trust**, and violation of the trust justifies resistance. FACT: Rousseau contributes equality and self-legislation: sovereignty stays with the people as the general will, so civil freedom becomes moral autonomy.

**Where it falls short.** ANALYSIS: Contract theory typically begins from a **bounded political community** and may leave uncertain the standing of three categories: persons **outside** the contract, **future generations**, and those **lacking bargaining power** such as children and the severely disabled. Human rights are asserted precisely on behalf of those groups.

**Objection and reply.** CAUTION: It may be said that contract already treats persons as free and equal, so it suffices. ANALYSIS: The reply is that the parties are specified as those capable of contracting, and the distinctive work of human rights is to bind us towards those who cannot - so free-and-equal starting points need supplementation by universal moral concern not limited to contractors. FACT: The historical objection that no actual contract occurred is answered in one line: the theory's value is normative, asking what terms of rule free and equal persons could reasonably accept.

**Verdict.** ANALYSIS: Social contract theory is **powerful but incomplete**: it explains political legitimacy, while human rights additionally require a theory of dignity, humanity or personhood. CAUTION: The residual criticism - that contract abstracts from unequal starting positions - is not fully answered by any version of the theory.

### Why this earns marks

**Answer-writing focus:** "adequately" is empty until a benchmark is supplied. Scripts that praise or dismiss the theory without naming the standard of adequacy produce a verdict with nothing behind it.

**Exam-length execution - 15 marks, about 250 to 330 words:** benchmark two lines; contributions five; shortfall three; objection-reply four; verdict two.

- **Structure:** name the benchmark -> contributions -> three excluded categories -> objection with reply -> graded verdict.
- **Doctrine:** contract as a normative test of legitimacy; human rights as universal moral standing.
- **Evidence:** Locke's trust and resistance; Rousseau's general will and self-legislation; the three excluded categories.
- **Distinction:** political legitimacy against universal moral standing.
- **Criticism:** abstraction from unequal starting positions, conceded as residual.

### Solved PYQ 5 · 2022 · Q4(b) · 15 marks

**Question:** Does idea of unconditional rights necessarily lead to anarchy? Critically examine.

### Demand decoding

| Element         | Requirement                                                                                                |
|-----------------|------------------------------------------------------------------------------------------------------------|
| Directive       | "Critically examine" - the objection-reply layer <i>is</i> the answer, and the modal word must be attacked |
| Core issue      | Whether unlimited rights produce disorder, or destroy themselves before disorder arises                    |
| Scope boundary  | Fifteen marks: the collision argument, the four boundary principles, the erosion counter-worry             |
| Key distinction | Limitation against nullification; self-defeat against anarchy                                              |
| Non-negotiables | Both operative words defined; the Hohfeldian refinement; the closing on accountability                     |

### Independent model answer

**Fixing the two words.** ANALYSIS: "Unconditional" means admitting **no limit whatever**, not merely "strong". "Necessarily" is a **modal** claim, so it is defeated if the consequence does not follow of conceptual necessity.

**The collision argument.** FACT: Rights are claims that plural persons must be able to hold **simultaneously**. If every asserted liberty were absolute, collisions would be unavoidable - and unresolvable, because any procedure for resolving them would itself constitute a condition. ANALYSIS: Hohfeld sharpens this: two unconditional **liberties** conflict in fact, while two unconditional **claim-rights** conflict in normative structure, since each entails a duty in the other party that the other's right forbids.

**What follows.** FACT: Rights therefore require **boundary principles**: others' equal rights, harm constraints, public order, and institutional adjudication. This is not denial of rights but the **condition of their coexistence**, since liberty is plural and socially situated.

**The decisive distinction.** FACT: **Limiting** rights is not the same as **nullifying** them. The problem is arbitrary restriction, not principled coordination - and a principled limit is reasoned, bounded and reviewable, while an arbitrary one is none of these.

**Objection and reply.** CAUTION: Once limits are admitted, the state may steadily erode rights, each restriction plausible alone and the aggregate destructive. ANALYSIS: Hence the answer closes on **accountability**: every restriction must itself be justified, proportionate and judicially reviewable, so that the limits are limited in turn. CAUTION: The residual vulnerability is empirical - where review is captured or unavailable to the affected group, the erosion objection returns in full.

**Verdict. ANALYSIS:** Unconditional rights are **self-defeating rather than necessarily anarchy-producing**: they destroy the coexistence that makes rights exercisable, so the failure is internal to the concept and does not depend on any prediction of social breakdown.

### Why this earns marks

**Answer-writing focus:** the modal word must be attacked directly. A script that describes disorder has offered a sociological forecast where the stem asked for a conceptual necessity claim.

**Exam-length execution - 15 marks, about 250 to 330 words:** definitions two lines; collision four; boundary principles two; limitation/nullification two; objection-reply four; verdict two.

- **Structure:** define both operative words -> collision argument -> boundary principles -> limitation against nullification -> erosion objection with reply -> verdict.
- **Doctrine:** rights as simultaneously holdable claims; principled limitation as a condition of coexistence.
- **Evidence:** the four boundary principles; the Hohfeldian refinement of the collision.
- **Distinction:** self-defeat against anarchy; principled coordination against arbitrary restriction.
- **Criticism:** the empirical vulnerability of review, conceded as residual.

### Solved PYQ 6 · 2023 · Q2(b) · 15 marks

**Question:** Do you agree that duty and accountability must be given priority over rights for the better functioning of a State? Justify your answer.

### Demand decoding

| Element         | Requirement                                                                                        |
|-----------------|----------------------------------------------------------------------------------------------------|
| Directive       | "Do you agree ... Justify" - a position plus a named criterion, not a survey                       |
| Core issue      | Whether a priority ranking among the three printed terms can be defended                           |
| Scope boundary  | Fifteen marks: criterion first, then the grid, then the role of accountability, then the verdict   |
| Key distinction | Ethical priority in motivation against political priority in protection                            |
| Non-negotiables | The three-position grid with merits and risks; accountability as the term that saves duty-priority |

### Independent model answer

**Naming the criterion. ANALYSIS:** A priority claim is empty until a standard is fixed. Two standards are available: **ethical priority**, which asks what best motivates good conduct, and **political priority**, which asks what best protects persons against abuse. The stem's phrase "better functioning of a State" points to the first while presupposing the second.

**The three positions. FACT:** **Rights-first** protects the person against coercion and shields minorities and dissent, at the risk of an atomised entitlement culture. **FACT:** **Duty-first** preserves order and reciprocity and stresses social responsibility, at the risk of paternalism or conformity. **ANALYSIS:** The **balanced view** treats rights and duties as mutually sustaining and fits constitutional democracy best, but requires institutional vigilance.

**Partial agreement. ANALYSIS:** The stem is right that a republic cannot function on claims alone. Duties turn abstract norms into expectations of conduct, and democratic citizenship depends on tolerance, honesty, restraint and respect for disagreement - habits no legal order can codify or manufacture. **FACT:** Gandhi's duty-centrism states the strongest version: rights become secure when persons discipline themselves.

**Why the priority cannot be unqualified. CAUTION:** Duty-language is dangerous when it binds downward only, and it has historically been invoked by authority to silence dissent. **FACT:** This is exactly why the stem's inclusion of **accountability** matters: if public power must answer, be judged and be corrected, then asking citizens for duty is not a demand for submission. Accountability prevents both state excess and civic irresponsibility.

**Verdict.** ANALYSIS: Duty may have **ethical priority** in motivating conduct, but rights retain **political priority** in protecting persons against abuse; accountability is the condition under which the first is safe. ANALYSIS: I therefore agree in part: duty and accountability deserve emphasis, not precedence, since no stable democratic order can rest on only one of these values.

### Why this earns marks

**Answer-writing focus:** ranking without a criterion is assertion, and "balance" without a criterion is a longer assertion. Name the standard in the first three lines and the rest of the answer writes itself.

**Exam-length execution - 15 marks, about 250 to 330 words:** criterion three lines; grid four; partial agreement four; qualification four; verdict two.

- **Structure:** name the criterion -> three-position grid -> concede the stem's strength -> name the danger -> graded verdict.
- **Doctrine:** duty as a discipline of coexistence; accountability as the ethics of public power.
- **Evidence:** the merits-and-risks grid; the civic habits law cannot manufacture; Gandhi's duty-centrism.
- **Distinction:** ethical priority against political priority; emphasis against precedence.
- **Criticism:** duty-talk used downward only, met by accountability rather than dismissed.

### Solved PYQ 7 · 2024 · Q1(b) · 10 marks

**Question:** Present a brief account of origin and development of Social Contract Theory.

### Demand decoding

| Element         | Requirement                                                                                    |
|-----------------|------------------------------------------------------------------------------------------------|
| Directive       | "Origin and development" - chronology <b>plus</b> conceptual movement, never three biographies |
| Core issue      | What each successor <b>changes</b> , and why the change matters                                |
| Scope boundary  | Ten marks: one line on origin, then the three positions as changes, then a one-line verdict    |
| Key distinction | Transfer, trust and general will                                                               |
| Non-negotiables | Hobbes irreversible; Locke's trust and resistance; Rousseau's relocation of sovereignty        |

### Independent model answer

**Origin.** FACT: Social contract theory explains the origin and justification of the state through an agreement, actual or hypothetical, among individuals. Its founding achievement is to derive political obligation from the **standpoint of individuals** rather than from divine right or conquest.

**Hobbes.** FACT: From a state of nature marked by insecurity, fear and conflict, the contract secures **peace** through a broad and irreversible transfer of judgment to a strong sovereign. Rights are surrendered extensively for the sake of self-preservation.

**Locke - the first development.** FACT: The state of nature becomes more norm-governed, containing inconveniences rather than war. The arrangement becomes a **fiduciary trust** for the impartial protection of rights already held, so government is limited, natural rights are retained, and violation of the trust justifies **resistance**.

**Rousseau - the second development.** FACT: Freedom in the state of nature has been corrupted by inequality, and the contract's purpose becomes **collective self-rule**. Sovereignty stays with the people as the **general will**, so obedience becomes self-legislation and civil freedom is moral autonomy.

**The fiction objection, answered.** CAUTION: No actual historical contract occurred. FACT: The theory's value is **normative rather than historical**: it asks what terms of rule free and equal persons could reasonably accept.

**Verdict.** ANALYSIS: The development is a sequence of deliberate changes - transfer, then trust and resistance, then relocation of sovereignty - and it is this movement, not the shared vocabulary, that constitutes the theory's history.

### Why this earns marks

**Answer-writing focus:** at ten marks the temptation is three summaries. The stem's word is *development*, and marks follow the changes: what Locke adds to Hobbes, and what Rousseau relocates.

**Exam-length execution - 10 marks, about 150 to 220 words:** origin two lines; Hobbes two; Locke three; Rousseau three; fiction objection one; verdict one.

- **Structure:** origin -> Hobbes -> Locke's change -> Rousseau's change -> fiction objection -> movement verdict.
- **Doctrine:** obligation derived from the individual's standpoint.
- **Evidence:** irreversible transfer; fiduciary trust with a right of resistance; the general will.
- **Distinction:** transfer against trust against relocation of sovereignty.
- **Criticism:** the historical-fiction objection, answered normatively in a single line.

### Solved PYQ 8 · 2024 · Q3(a) · 20 marks

**Question:** Do you agree with the view that Aristotle was more successful than Plato in steering a middle course between 'Statism' and 'individualism'? Discuss with arguments.

### Demand decoding

| Element         | Requirement                                                                                     |
|-----------------|-------------------------------------------------------------------------------------------------|
| Directive       | "Do you agree ... Discuss with arguments" - agreement must be granted and immediately qualified |
| Core issue      | Whether an intermediate sphere between person and polis survives in each thinker                |
| Scope boundary  | Twenty marks: run the axes, then the shared perfectionism, then the exclusions                  |
| Key distinction | Comparative success against modern individualism                                                |
| Non-negotiables | Excessive unity; household and property; differentiated constitution; the exclusions            |

### Independent model answer

**Thesis. ANALYSIS:** I agree, but only comparatively: Aristotle steers the better middle because an **intermediate sphere** survives in his polity, while both thinkers remain perfectionists and Aristotle's exclusions block any modern endorsement.

**Fixing the axis. ANALYSIS:** A middle course between statism and individualism is measured by whether anything stands **between** the person and the political whole - household, property, association, plural constitutional roles. Neither thinker is an atomistic individualist, so the comparison must be conducted on that axis.

**Plato. FACT:** The *Republic* makes justice **functional harmony** under philosopher-rule: each part of the city performs its proper work. To prevent faction, the guardian class gives up **private property and the private family**. **ANALYSIS:** This is a deliberate subordination of the private domain to political unity, and the person's good is specified through proper function in the ordered city - which places Plato nearer the statist pole.

**Aristotle. FACT:** The polis is **natural** and exists for the good life, but Aristotle criticises **excessive unity** directly: a polis is a **plurality**, not one household or one person. **FACT:** Household and private property therefore remain, though their use should serve common purposes, and citizenship is **activity within a differentiated constitution** rather than the discharge of an assigned function. **ANALYSIS:** Person and polis are thus related rather than the person being absorbed.

**The comparative judgment. ANALYSIS:** Aristotle preserves more social plurality, better protects the intermediate sphere, and relates rather than absorbs the individual good. That is exactly what steering a middle course requires, and the stem's comparison is therefore sound.

**The qualification. CAUTION:** Both remain **perfectionists**: neither treats the state as neutral among conceptions of the good. **FACT:** And Aristotle's polity rests on **slavery, the exclusion of women and restricted citizenship**, which are incompatible with modern equality. His intermediate sphere is available only to a restricted citizen body.

**Verdict. ANALYSIS:** Aristotle's success is **comparative, not liberal**. He defeats Plato's excessive unity without becoming an individualist, and an unqualified endorsement would misdescribe both thinkers.

### Why this earns marks

**Answer-writing focus:** the marks are split between agreeing and qualifying. A script that only agrees turns Aristotle into a modern liberal; a script that only qualifies never answers the comparison the stem sets.



**Exam-length execution - 20 marks, about 330 to 400 words:** thesis two lines; axis two; Plato four; Aristotle five; comparative judgment three; qualification three; verdict two.

- **Structure:** thesis -> fix the axis -> Plato -> Aristotle -> comparative judgment -> shared perfectionism and exclusions -> verdict.
- **Doctrine:** the intermediate sphere as the test of a middle course.
- **Evidence:** guardian property and family arrangements; the plurality argument; the differentiated constitution.
- **Distinction:** comparative middle against modern individualism.
- **Criticism:** perfectionism and the exclusions, which limit the endorsement without defeating the comparison.

### Solved PYQ 9 · 2025 · Q4(c) · 15 marks

**Question:** "Duties are of the nature of obligation while Rights are of the nature of entitlement. Therefore there is no necessary connection between the two." Do you agree with this statement? Give reasons and justification for your answer.

### Demand decoding

| Element         | Requirement                                                                                                               |
|-----------------|---------------------------------------------------------------------------------------------------------------------------|
| Directive       | "Do you agree ... Give reasons" - the stem is an <i>inference</i> , so premise and conclusion must be assessed separately |
| Core issue      | Whether analytic distinguishability entails absence of necessary connection                                               |
| Scope boundary  | Fifteen marks: concede the premise, refuse the inference, split by Hohfeldian incident                                    |
| Key distinction | Logical strictness against normative necessity                                                                            |
| Non-negotiables | The four incidents with correlatives; the empty-entitlement and authoritarian consequences                                |

### Independent model answer

**Position. ANALYSIS:** I agree with the statement's **premise** and reject its **inference**. Obligation and entitlement are genuinely distinct concepts; but analytic distinguishability does not entail the absence of a necessary connection.

**Conceding the premise. FACT:** Duties are obligations to do, avoid, respect or support; rights are justified claims, liberties, powers or immunities. The two are **analytically distinguishable**, which is why we have two words rather than one.

**Refusing the inference - the Hohfeldian split. FACT:** "Right" names four juridical positions, each with its own correlative: a **claim-right** correlates with a **duty**; a **liberty** correlates only with a **no-right** in others; a **power** correlates with **liability**; an **immunity** correlates with **disability**. **ANALYSIS:** Therefore correlativity is **strict** for claim-rights - my right against assault simply *is* your duty not to assault me - and **absent** for liberties, since a liberty imposes no positive duty of assistance. The connection is conceptual for one class of rights and institutional for the rest.

**Why the connection is not dispensable. FACT:** Rights are **socially actionable**, not isolated metaphysical ornaments. A legal right to remedy implies institutions' duty to hear claims. **ANALYSIS:** Two consequences follow: entitlements without correlative obligations remain **empty**, and obligations without any corresponding claims risk **authoritarianism**. The concepts are distinguishable but **not socially separable**.

**The strongest point on the other side. CAUTION:** For liberties the correlativity thesis really is false as stated, so a candidate who claims that every right entails a duty has overreached. **ANALYSIS:** The honest position concedes this rather than defending an untenable universal.

**Verdict. ANALYSIS:** Not agreed as a whole: the premise is sound, the inference invalid. **Logical strictness** does not hold for every use of "right", but **normative necessity** does - a right-worthy order requires duties somewhere in the background, and the two are inseparable in practice even where they are separable in analysis.

### Why this earns marks

**Answer-writing focus:** the mark-bearing move is the **correlativity analysis**. Showing which rights have strict correlative duties and which do not defeats the inference precisely, where "two sides of a coin" merely asserts the universality the liberty case refutes.



**Exam-length execution - 15 marks, about 250 to 330 words:** position two lines; premise conceded two; Hohfeldian split six; consequences three; concession two; verdict three.

- **Structure:** position -> concede premise -> four incidents and their correlatives -> empty/authoritarian consequences -> concede the liberty case -> modal verdict.
- **Doctrine:** correlativity, distinguished into strict and institutional forms.
- **Evidence:** the four Hohfeldian incidents; the right against assault; the right to remedy.
- **Distinction:** logical strictness against normative necessity; distinguishable against separable.
- **Criticism:** the liberty counter-example, conceded rather than concealed.

ANALYSIS: These six questions are **original practice**, written in the style of the paper but not drawn from any official examination. Word bands are the same as above.

## ORIGINAL MAINS PRACTICE WITH MODEL SOLUTIONS

### Original 1 · 10 marks

**Question:** Explain the distinction between a claim-right and a liberty, and show why the distinction matters for the relation between the individual and the state. Answer in about 150 words.

#### Independent model answer

**The distinction.** FACT: A **claim-right** is a justified claim whose correlative is a **duty** in a determinate other: my right against assault is your duty not to assault me. A **liberty** or privilege is a freedom to act whose correlative is merely a **no-right** in others: nobody may demand that I desist, but nobody is bound to assist me either.

**Why it matters.** ANALYSIS: First, it disciplines rights-talk. Claims of the form "I have a right to X" are inflated whenever no bearer of a corresponding duty can be named. FACT: Second, it fixes what the state owes: liberties require **forbearance**, while claim-rights may require **provision, protection and remedy**, which is a far heavier institutional demand.

**Verdict.** ANALYSIS: The distinction therefore separates what the state must merely not do from what it must actually do - and confusing the two produces either hollow entitlements or an unbounded expectation of provision.

#### Why this earns marks

- **Structure:** definition of each incident with its correlative -> two consequences -> verdict on state obligation.
- **Doctrine:** Hohfeld's incidents deployed rather than merely listed.
- **Evidence:** the assault example for the claim-right; the absence of an assistance duty for the liberty.
- **Distinction:** forbearance against provision.
- **Criticism:** the inflation risk, named as the practical cost of the confusion.

### Original 2 · 10 marks

**Question:** What is meant by accountability, and why is it insufficient to identify it with periodic elections? Answer in about 150 words.

#### Independent model answer

**The concept.** FACT: Accountability means that those who exercise public power must **explain, justify and bear consequences** for their decisions. It is the bridge from authority to legitimacy: power without answerability is domination, while accountable power can be defended as public trust.

**The three dimensions.** FACT: **Answerability** requires information and public justification; **enforceability** requires review, remedy, sanction or removal where standards were breached; **responsiveness** requires changed conduct, repaired harm and institutional learning. ANALYSIS: Each fails when isolated - explanation without correction becomes ritual, punishment without reason-giving becomes arbitrary, and reactive correction without prospective rules leaves the next case exposed.

**Why elections are insufficient.** ANALYSIS: An election is periodic, aggregate and retrospective; it cannot examine a particular decision, supply a remedy to a particular claimant, or require an institution to learn. FACT: Political accountability itself extends beyond voting to opposition, deliberation, publicity and criticism, and legal and moral

answerability are distinct arenas again.

### Why this earns marks

- **Structure:** definition -> three dimensions with failure modes -> the specific inadequacy of elections.
- **Doctrine:** accountability as the authority-to-legitimacy bridge.
- **Evidence:** the three dimensions; the extension of political accountability beyond voting.
- **Distinction:** periodic and aggregate against particular and remedial.
- **Criticism:** the ritual, arbitrariness and non-learning failure modes, named precisely.

### Original 3 · 15 marks

**Question:** "The state may remove hindrances to freedom, but it may not define what freedom is for." Critically examine this claim with reference to the idealist and welfare-liberal accounts of the individual-state relation. Answer in about 250 words.

### Independent model answer

**The claim's structure.** ANALYSIS: The statement concedes an **enabling** role to the state and denies it a **defining** one. Its plausibility depends on whether that line can be held.

**Where it is strongest.** FACT: T. H. Green's idealism supports it directly: the state is a **means to the common good**, and its proper work is to **remove remediable hindrances to self-realisation** while leaving moral agency with citizens. FACT: Welfare liberalism supports it too: formal rights are hollow where poverty, illness, ignorance or dependency makes choice unusable, so a social minimum and fair opportunity are justified without licensing direction of life. ANALYSIS: On both accounts positive freedom is **effective capacity**, not an authorisation to prescribe ends.

**Where it comes under pressure.** CAUTION: Hegel's account makes freedom **concrete** through participation in rational institutions, which suggests that institutions partly constitute what freedom is rather than merely clearing obstacles. CAUTION: And every hindrance-removal presupposes a judgment about which obstacles matter - a judgment that is not itself content-free.

**Objection and reply.** CAUTION: Once the state defines the rational or higher self, coercion may be presented as liberation. ANALYSIS: The defensible reconstruction keeps enabling action **rights-bound, decentralised where possible and open to public challenge**; provision may still become paternalistic or dependency-producing, so the reply is a discipline rather than a guarantee.

**Verdict.** ANALYSIS: The claim survives as a **regulative principle** rather than a sharp boundary: the state cannot avoid some conception of what hindrances are, but it can be held to justifying that conception publicly and to leaving the exercise of agency with the citizen.

### Why this earns marks

- **Structure:** analyse the claim -> strongest support -> pressure points -> objection with reply -> regulative verdict.
- **Doctrine:** Green's hindrance-removal; welfare liberalism's hollow-rights insight; Hegel's concrete freedom.
- **Evidence:** conditional political obligation; the social minimum; the paternalism and dependency limits.
- **Distinction:** enabling against defining; regulative principle against sharp boundary.
- **Criticism:** the non-neutrality of hindrance-identification, conceded rather than evaded.

### Original 4 · 15 marks

**Question:** Distinguish civil disobedience from conscientious objection, resistance and revolution, and examine whether a constitutional democracy can consistently accommodate any of them. Answer in about 250 words.

### Independent model answer

**The four rungs.** FACT: **Conscientious objection** aims to avoid personal complicity, may be private, seeks exemption and typically accepts the penalty, and accepts the system's legitimacy. FACT: **Civil disobedience** aims to persuade the majority, is **essentially public**, breaches a specific law with **acceptance of legal consequences**, and appeals to the system's own principles. FACT: **Resistance** aims to obstruct a specific grave injustice, may be covert, may refuse the penalty, and denies the legitimacy of the acts obstructed. FACT: **Revolution** aims to replace the constitutional order, is organised and often armed, and denies the system's legitimacy wholesale.

**The two defining features of civil disobedience.** ANALYSIS: Publicity with appeal to shared principles, and acceptance of the legal penalty - the second being what demonstrates that the actor contests **one law** rather than repudiating law as such. FACT: Non-violence is standardly added; on the Gandhian account it is **constitutive**, since means and ends are inseparable.

**Can a constitutional democracy accommodate them?** ANALYSIS: It can accommodate the first two without contradiction, because both accept the order's legitimacy and neither claims a legal right to disobey. WRONG: No legal order can **recognise a right** to civil disobedience, since acceptance of the penalty is part of the concept. FACT: In India, Articles 19(1)(a) and 19(1)(b) protect protest subject to reasonable restrictions; they do not protect law-breaking, and Article 51A is non-justiciable.

**Verdict.** ANALYSIS: Accommodation is moral and political rather than legal: the order tolerates and learns from penalty-accepting dissent, while resistance and revolution answer to progressively heavier burdens of justification. CAUTION: Ambedkar's objection stands wherever constitutional channels are genuinely open to the group in question.

### Why this earns marks

- **Structure:** four rungs on five criteria -> the two defining features -> the accommodation question -> verdict with the standing objection.
- **Doctrine:** the graded ladder; publicity and penalty-acceptance as constitutive.
- **Evidence:** Articles 19(1)(a), 19(1)(b) and 51A; Ambedkar's availability condition.
- **Distinction:** moral and political accommodation against legal recognition.
- **Criticism:** the availability condition, left contestable rather than declared settled.

### Original 5 · 20 marks

**Question:** "Political obligation, if it exists at all, is neither general nor content-independent." Critically examine this claim, and assess whether its acceptance would weaken the authority of law. Answer in about 330 words.

### Independent model answer

**Fixing the terms.** FACT: **Political obligation** is a moral duty to obey the law of one's own state **because it is the law** - not fear of sanction, not agreement with the law's content, and not the merely jurisprudential fact of legal validity. ANALYSIS: The claim under examination denies two of the four standard tests: **generality** and **content-independence**.

**Testing the candidate grounds.** FACT: **Consent** founders because almost nobody has expressly consented, and tacit consent inferred from residence or use of roads is not voluntary in any meaningful sense. FACT: **Fair play** - the family examiners most often reward - reconstructs as: political society is a cooperative scheme; its benefits exist because most bear burdens; I have enjoyed them; to take the benefit while refusing the burden is free-riding; free-riding is unfair; so I owe compliance. ANALYSIS: It fails because public order is **non-excludable**: an unsolicited benefit I could not decline generates no debt, and the repaired version - restricted to knowingly and willingly accepted benefits - binds precisely those who least need binding. FACT: The **natural duty of justice** fails **particularity**, binding me to any just state. ANALYSIS: **Associative** accounts risk deriving obligation from mere membership however unjust the association, and **gratitude** can be claimed by an oppressive benefactor.

**The sceptical conclusion, stated exactly.** FACT: A. John Simmons is the canonical modern sceptic: the standard grounds fail to bind **all and only** the members of a particular state. ANALYSIS: But the conclusion is narrower than it sounds - it denies a **general, content-independent** duty while leaving most laws bindingly supported by independent moral reasons against harm, fraud and unfairness.

**The strongest reply.** FACT: Joseph Raz's **service conception** relocates the question: an authority is legitimate when its directives help subjects **conform better to reasons that already apply to them**, and those directives then function as **pre-emptive** reasons replacing rather than outweighing private calculation. ANALYSIS: Authority is thereby bounded by its function rather than unlimited.

**Verdict.** ANALYSIS: The claim is largely sustained and its consequences are modest. CAUTION: Law's authority is weakened only if authority requires unconditional obedience; on the service conception and on the disobedience ladder, defeasible obligation is compatible with a stable legal order, because publicity, non-violence, exhaustion of remedies and acceptance of penalty are severe filters.

#### Why this earns marks

- **Structure:** fix the terms -> run the four tests across the families -> state the sceptical conclusion narrowly -> Raz's reply -> consequences verdict.
- **Doctrine:** generality, particularity, content-independence, defeasibility; the service conception.
- **Evidence:** the fair-play reconstruction and its non-excludability defeat; the particularity failure of the natural duty.
- **Distinction:** being obliged against having an obligation; general duty against particular binding reasons.
- **Criticism:** the residual that Raz's justification is instrumental, so authority is bounded rather than absolute.

#### Original 6 · 20 marks

**Question:** "Rights protect individuality, duties sustain social order, and accountability legitimises coercion; but each becomes destructive without the other two." Discuss this claim as an account of the relation between the individual and the state. Answer in about 330 words.

#### Independent model answer

**Thesis.** ANALYSIS: The claim is the strongest available summary of this relation, because it identifies not three virtues but three **directions** of a single relation, each of which degenerates in a determinate way when isolated.

**Rights without duties and accountability.** FACT: A right is a justified claim, liberty, power or immunity; but rights are **socially actionable**, and a claim-right is meaningful only where a determinate other bears the correlative duty.

ANALYSIS: Detached from limits and reciprocity, rights become **licence**: unconditional claims collide unresolvably, because any resolving procedure would itself be a condition. FACT: Detached from accountability, they lack remedy, since a right no forum will vindicate is a right in name.

**Duties without rights and accountability.** FACT: Duties turn abstract norms into expectations of conduct and make coexistence possible, and democratic citizenship depends on habits - tolerance, honesty, restraint - that no legal order can manufacture. CAUTION: But duty is regularly invoked by authority to silence dissent. ANALYSIS: Detached from rights, duty becomes **subordination**; and this is precisely why the safeguard is accountability, which makes the demand for duty reciprocal rather than downward. FACT: Ambedkar's objection is the sharpest instance: a duty-first order in a stratified society can be captured by dominant groups.

**Accountability without rights and duties.** FACT: Accountability requires answerability, enforceability and responsiveness together. ANALYSIS: Without rights it has no **standard** by which to judge, so review becomes procedural ritual; without duties it lacks the civic sustenance that keeps reviewing institutions functioning. ANALYSIS: Power without answerability is **domination** however efficient it is, since a state may be efficient yet unaccountable.

**The strongest objection.** CAUTION: It may be said that this three-way balance is a description rather than a ranking, and that real cases force a choice. ANALYSIS: The reply is that a criterion is available: duty holds **ethical priority** in motivating conduct, while rights hold **political priority** in protecting persons against abuse, with accountability as the condition under which the first is safe.

**Verdict.** ANALYSIS: The claim is sound as a structural thesis and incomplete as a decision procedure. FACT: Its enduring value is that it makes the individual neither an atom outside society nor an expendable part of the state, and specifies a justified relation between dignity and authority.

#### Why this earns marks

- **Structure:** thesis -> three isolation-failures in turn -> strongest objection with reply -> structural verdict.
- **Doctrine:** the three directions of one relation; the three dimensions of accountability.
- **Evidence:** the collision argument; the civic habits law cannot manufacture; Ambedkar's capture objection.
- **Distinction:** licence, subordination and domination as three determinate degenerations.
- **Criticism:** the balance is structural rather than decisional, met by naming a priority criterion.